

FULL TIME (AWARD) EMPLOYMENT CONTRACT

Manuplex

and

Shane Schleger

This Contract

is made on 29th May 2024

Between

See **Item 1** of the Schedule (**Employer**)

and

See **Item 2** of the Schedule (**Employee**)

BACKGROUND

- A. The Employer has agreed to employ you and you have agreed to work for the Employer in the position described at **Item 3** of the Schedule.
- B. The Employer and you have agreed to enter into this Contract to record the terms and conditions of your employment.
- C. The Employer acknowledges its obligation to apply the applicable employment protections to you and to abide by the provisions contained in any relevant legislation.

The Employer And You Agree that:

1. DEFINITIONS

Associated Entities has the same meaning as in the *Corporations Act 2001 (Cth)*.

Confidential Information means all the information including trade secrets, Intellectual Property, marketing and business plans, client and supplier lists, computer software applications and programs, business contacts, finance, data concerning the Employer or any of its associated entities or any client of the Employer's, finances, operating margins, prospect's lists, and transactions of the Employer, but does not include information in the public domain otherwise than through a breach of an obligation of confidentiality.

Contract means this employment Contract.

Intellectual Property means all form of Intellectual Property rights throughout the world including but not limited to present and future copyright, registered and unregistered trademarks, patent, design, rights, trademark, any other intellectual or industrial property rights, discovery, invention, secret process or improvement in procedure of any kind whether arising from statute, under common law or in equity and Confidential Information including know-how and trade-secrets.

Moral Rights has the meaning given to it in the *Copyright Act 1968 (Cth)* and includes rights of integrity of authorship, rights of attribution of authorship and similar rights that exist or may come to exist anywhere in the world.

The Act means the *Fair Work Act 2009 (Cth)*.

Works means all inventions, policies, practices, designs, drawings, plans, software, hardware, reports, documents, systems, improvements and other materials.

2. COMMENCEMENT AND WARRANTIES

- 2.1 The Employee's date of commencement of employment with the Employer is identified at **Item 4** of the Schedule.
- 2.2 The terms and conditions of the Employee's employment will be in accordance with this Contract and, where applicable, the Industrial Instrument as detailed in **Item 5** of the Schedule (**the Industrial Instrument**), as varied and amended from time to time.
- 2.3 The Employee agrees that they:
 - (a) hold the qualifications and have the skills as represented by them to the Employer
 - (b) have disclosed to the Employer any restraint or restriction which may affect their performance of work
 - (c) enter into this Contract without any form of coercion
 - (d) are legally entitled to work in Australia, and agree to produce the appropriate documentation were requested by the Employer and
 - (e) have and will maintain the licences and qualifications necessary to fulfil their role.

3. PROBATION

4. POSITION AND TITLE

- 4.1 The Employee is employed on a full-time basis in the position described at **Item 3** of the Schedule.
- 4.2 The Employee may be required to perform other tasks from time to time, as reasonably requested by the Employer.

5. PRINCIPAL DUTIES

- 5.1 The Employee may be provided with an outline of their duties before or on commencement of their employment. The outline is not intended to be an exhaustive list of the duties the Employee may be required to perform, rather an indication of the kinds of duties that fall within the scope of the position.
- 5.2 The Employee also has general duties to:
 - (a) comply with reasonable directions given to the Employee by the Employer
 - (b) at all times act faithfully, honestly and diligently
 - (c) ensure they are performing solely work-related activities in work time
 - (d) exhibit a professional and courteous attitude when dealing with the Employer, its customers, employees, suppliers, and other members of the public and
 - (e) act in the Employer's best interests at all times.

6. EMPLOYER POLICIES AND PROCEDURES

The Employee agrees that:

- (a) they will comply with all the Employer's policies and procedures, as amended from time to time at the sole discretion of the Employer
- (b) the specific detail of the Employer's policies does not form a term of this Contract and
- (c) failure to comply with the Employer's policies may result in disciplinary action, up to and including termination of employment.

7. LICENCES, CLEARANCES AND REGISTRATIONS

- 7.1 The Employee is required to hold and maintain the following:
 - (a) Australian Driver Licence
 - (b) Trade Certificate (if applicable)
 - (c) Standard 11 surface and underground
 - (d) Coal Board Medical
 - (e) Any other relevant qualification essential to the role.
- 7.2 The Employer may require the Employee to provide evidence that they hold the above.
- 7.3 These are considered essential requirements of the Employee's role. The Employer reserves the right to terminate the Employee's employment without notice in the event that they fail to maintain the items listed in Clause 7.1 resulting in their inability to perform the requirements of this Contract.

- 7.4 The Employee must notify the Employer immediately in the event that they no longer hold, or are no longer eligible to hold, any of the items listed in Clause 7.1.

8. PLACE OF EMPLOYMENT

- 8.1 The Employer's current primary business location is described in **Item 6** of the Schedule.
- 8.2 The Employee will be required to work at this location, unless otherwise reasonably requested by the Employer.
- 8.3 The Employee may also be required to travel as reasonably necessary for the performance of their duties.
- 8.4 The Employee will be required to travel to and work at client and prospective client sites as reasonably requested by the Employer.

9. HOURS OF WORK

- 9.1 The business' normal span of hours of operation are outlined at **Item 7** of the Schedule.
- 9.2 The Employee will be required to work a minimum of 38 hours per week plus any additional hours which are reasonably necessary to fulfil the requirements of their duties, or as reasonably requested by the Employer.

10. ACCOMMODATION AND MEALS

- 10.1 Where relevant, meals and accommodation will be provided by the Employer. It is the Employee's responsibility to notify the following of any absence to avoid additional fees being charged by accommodation providers:
- a) Immediate Supervisor / Shift Supervisor
 - b) The Accommodation Provider (shift supervisor will have the contact details)
 - c) Human Resources / Payroll Department
- 10.2 Any additional fees incurred by the Employer, will be deducted in full, from the Employee's next pay cycle.

11. TIME OFF IN LIEU

The Employee may accrue time off in lieu in substitution of payment for overtime, however these additional hours must be approved in writing by the Employer and taken as mutually agreed between all parties.

12. TIME RECORDING

- 12.1 The Employee is required to complete regular time recordings as directed by the Employer.
- 12.2 The Employee is responsible for the completion of their own time record. Completing time records on behalf of another employee or permitting another employee to do so on the Employee's behalf, may result in disciplinary action, up to and including termination of employment.

13. REMUNERATION

- 13.1 The Employee's remuneration is set out at **Item 8** of the Schedule.
- 13.2 Entitlements

- (a) The Employee will be entitled to any applicable penalty rates, overtime rates, allowances, or loadings appropriate to their position as set out in the National Employment Standards and/or Industrial Instrument.
 - (b) Where the Employee's pay exceeds the minimum entitlements of the National Employment Standards and Industrial Instrument, any amount paid in excess of these minimum entitlements may be used to offset any entitlement/s that may otherwise have been applicable.
- 13.3 The Employer will make superannuation contributions on the Employee's behalf in accordance with the relevant legislation.
- 13.4 During the term of a project, the Employer, at its sole discretion, may award to the Employee a Project Allowance. This allowance does not form part of this Contract and will be communicated to the Employee in writing separate to this Contract.
- 13.5 A Site Allowance is payable when working in a remote location and where accommodation is provided.
 - (a) It is not payable on shifts where a travel allowance is paid. The only exception to this is at the start and end of a tour.
 - (b) If accommodation is provided, then travel is paid at the start and end of tour only.
 - Any trips home during the tour will be at the employee's time and expense.
 - The employees must also ensure that they have complied with the Company Fatigue Policy.
 - (c) The employee must have completed their timesheets daily and signed on and off the electronic timekeeping system / app to be entitled to the Remote Site Allowance.

14. ANNUAL LEAVE

- 14.1 Annual leave will be accrued each year in accordance with the Industrial Instrument detailed in **Item 5** of the Schedule.
- 14.2 Where applicable, annual leave loading will be paid in accordance with the Industrial Instrument.
- 14.3 Where the Employee's annual leave remuneration exceeds the Industrial Instrument, Clause 12.2(b) is applicable.
- 14.4 Annual leave will be paid at the rate detailed in **Item 8** of the Schedule.

15. LONG SERVICE LEAVE

Long service leave will accrue in accordance with the relevant legislation.

16. PERSONAL/CARER'S LEAVE

- 16.1 Paid personal/carer's leave will be accrued for each year of service in accordance with the Industrial Instrument detailed in **Item 5** of the Schedule.
- 16.2 To be entitled to a period of paid or unpaid personal/carer's leave, the Employee must provide satisfactory documentary evidence in accordance with the Employer's policies.
- 16.3 Personal/carer's leave will be paid at the rate detailed in **Item 8** of the Schedule.

17. OTHER LEAVE

All other leave, including compassionate leave, parental leave, and community service leave will be provided to the Employee in accordance with the Employer's policy, the Act, and the Industrial Instrument, whichever is more generous.

18. PUBLIC HOLIDAYS

- 18.1 The Employee will be entitled to be absent from work on a day or part day that is a public holiday in accordance with the Act, unless reasonably requested to work by the Employer.
- 18.2 Where the Employee's remuneration exceeds the Industrial Instrument, Clause 12.2(b) is applicable.

19. DISCRETIONARY PAYMENTS

- 19.1 The Employer, at its sole discretion, may elect to pay a discretionary payment such as an incentive-based payment upon various considerations including, but not limited to, the profitability and future forecasts of the business and the Employee's performance.
- 19.2 The Employer reserves the right to vary, alter or withdraw these arrangements without notice.
- 19.3 It is a condition of any arrangement that the Employee is employed by the Employer at the time any payment falls due.

20. COMPANY MOTOR VEHICLE

- 20.1 The Employee may, from time to time, be required to use a company pool vehicle to enable them to efficiently perform their duties. This vehicle is provided solely for work-related use and is to remain at the Business premises outside of standard working hours unless agreed upon by the Employer.
- 20.2 The continued provision of a company motor vehicle is conditional upon the Employee holding a valid Australian Driver Licence at all times.
- 20.3 The type of company motor vehicle provided is at the discretion of the Employer and may be altered at any time in accordance with the Employer's operational requirements.
- 20.4 The company motor vehicle must be returned to the Employer when not used for work purposes, unless otherwise agreed upon by the Employer.
- 20.5 Additional rules regarding vehicles and driving are set out in the Employee Handbook which the Employee is required to read and fully comply with. The Employer reserves the right to vary, alter or withdraw these arrangements and will provide reasonable notice of any such changes.
- 20.6 Failure to with the Employer's company motor vehicle policies may result in disciplinary action, up to and including termination of employment

21. VEHICLE ALLOWANCE

- 21.1 The Employee may be required to use their own private motor vehicle for work purposes. Where required, the Employee will be entitled to a vehicle allowance in accordance with the Industrial Instrument or reimbursement of any expense/s incurred as agreed upon by the Employer.
- 21.2 Where the Employee's remuneration includes a vehicle allowance, the Employee will not be entitled to any further payments in respect of work-related use of their private vehicle.
- 21.3 The Employee is required to ensure that their vehicle is always neat, clean and in good mechanical order.

- 21.4 Additional rules regarding vehicles and driving are set out in the Employee Handbook which the Employee is required to read and fully comply with. The Employer reserves the right to vary, alter or withdraw these arrangements and will provide reasonable notice of any such changes.

22. COMPANY MOBILE PHONE

- 22.1 The Employee may be provided with a company mobile phone in order to complete their duties as directed by the Employer.
- 22.2 This mobile phone may only be used for business purposes. Reasonable personal use is only permitted where agreed upon by the Employer.
- 22.3 The use of the company mobile phone is subject to the terms and conditions contained within the Employee Handbook which the Employee is required to read and fully comply with. The Employer reserves the right to vary, alter or withdraw these arrangements and will provide reasonable notice of any such changes.

23. MOBILE PHONE ALLOWANCE

- 23.1 The Employee may be required to use their personal mobile phone for work purposes. Where required, the Employee will be entitled to a mobile phone allowance or reimbursement of any expense/s incurred as agreed upon by the Employer.
- 23.2 Where the Employee's remuneration includes a mobile phone allowance, the Employee will not be entitled to any further payments in respect of work-related use of their personal mobile phone.
- 23.3 Where applicable, payment of a mobile phone allowance must be approved in writing by the Employer.
- 23.4 The Employee will not be entitled to a mobile phone allowance when a period of unpaid leave is taken, unless agreed upon by the Employer.

24. COMPANY PROPERTY

- 24.1 The Employee may be provided with company property in order to complete their duties as directed by the Employer.
- 24.2 The company property may only be used for business purposes. Reasonable personal use is only permitted where agreed upon by the Employer.
- 24.3 The use of the company property is subject to the terms and conditions contained within the Employee Handbook which the Employee is required to read and fully comply with. The Employer reserves the right to vary, alter or withdraw these arrangements and will provide reasonable notice of any such changes.

25. COMPANY FUEL CARD

- 25.1 The Employee may be provided with a company fuel card in order to complete their duties as directed by the Employer. This fuel card may only be used for business purposes unless agreed upon by the Employer.
- 25.2 The use of the company fuel cards is subject to the terms and conditions contained within the Employee Handbook which the Employee is required to read and fully comply with. The Employer reserves the right to vary, alter or withdraw these arrangements and will provide reasonable notice of any such changes.
- 25.3 Failure to with the Employer's company fuel card policies may result in disciplinary action, up to and including termination of employment

26. TRAINING

The Employer, where agreed, will provide necessary training and development programs as part of the onboarding process or to enhance the Employee's skills and performance. Should the Employee voluntarily terminate their employment within a period of 12 months from the commencement date of such training, the Employer reserves the right to deduct the prorated cost of the training provided from any termination payment due at the time of termination.

The cost deducted will be calculated based on the direct expenses incurred by the Employer for the training programs attended by the Employee.

Prorated Cost

- a) 0 – 6 Months – 100%
- b) 6 – 12 Months – 50%

27. CONFIDENTIAL INFORMATION

The Employee agrees that at all times, during and after their employment with the Employer, that they will:

- (a) refrain from directly or indirectly disclosing to a third-party Confidential Information except in the proper course of carrying out their duties and approved by the Employer
- (b) not use the Confidential Information for any purpose other than for the benefit of the Employer
- (c) keep confidential all Employer Confidential Information
- (d) keep confidential any other employee's Confidential Information and
- (e) comply with the terms of this Contract unless otherwise required by relevant legislation.

28. INTELLECTUAL PROPERTY

- 28.1 All Intellectual Property rights arising from any Works created or developed by the Employee during their employment (whether alone or with others) will belong to the Employer and the Employee agrees to immediately disclose to the Employer all such Works.
- 28.2 The Employee agrees that all existing Intellectual Property rights, titles and interest in all Works created or developed by the Employee in the course of their employment (whether alone or with others) are vested in the Employer and upon their creation, all such rights will vest in the Employer. The Employee agrees to execute all documents and do all acts required to secure any Intellectual Property rights for the Employer.
- 28.3 For the benefit of the Employer, the Employee consents to any and all acts or omissions (whether occurring before or after this consent is given) in relation to all Works made or to be made by the Employee in the course of their employment which might otherwise infringe their Moral Rights in those Works.
- 28.4 The Employee warrants that they have consented without coercion or without relying on any representations other than those set out in this Contract.

29. NON-DISPARAGEMENT

The Employee must not at any time, during and after their employment with the Employer, disparage or otherwise permit, authorise, or make any statement which is calculated or reasonably likely to damage the reputation or cause other damage to the Employer or any Associated Entity, or any of their respective employees or officers.

30. RELIEF FROM DUTIES

- 30.1 Without limiting anything the Employer may require the Employee to do; the Employer may, at any time during the Employee's employment (including during any notice period) require the Employee to:
- (a) not undertake any of their employment duties
 - (b) carry out alternate duties
 - (c) perform work in a different physical location or from their home
 - (d) not attend work or any premises operated by the Employer, it's Associated Entities or clients
 - (e) not access the computer systems of the Employer or its Associated Entities
 - (f) not have any contact with any clients, suppliers or employees of the Employer or it's Associated Entities, or other persons or entities as advised by the Employer and/or
 - (g) not use or otherwise immediately return Employer property to the Employer
- provided the Employer continues to make payment to the Employee of their remuneration during the period in which they are directed to do any of the above.
- 30.2 The circumstances in which the Employer may give the Employee such direction includes, but is not limited to circumstances in which the Employer is carrying out an investigation into allegations of misconduct (whether or not such allegations have been made against the Employee) or in circumstances whereby such action is deemed necessary by the Employer to ensure it satisfies its health and safety obligations.
- 30.3 Nothing in this clause in any way limits the Employer's right to stand the Employee down without pay in accordance with any relevant legislation or in accordance with any other clause of this Contract.

31. TERMINATION OF EMPLOYMENT

- 31.1 The Employer may terminate the Employee's employment without notice or without a payment in lieu of notice for any of the following reasons, if the Employee:
- (a) commits any serious or persistent breach of any of the terms of this Contract
 - (b) is guilty of dishonesty, misconduct or neglect in the performance of their obligations under this Contract
 - (c) becomes insolvent or bankrupt or make any assignment or arrangement with their creditors
 - (d) is convicted of any criminal offence relevant to the performance of their obligations under this Contract
 - (e) refuses and/or fails to comply with any reasonable instruction or direction including any failure to conform and/or comply with their obligations under any of the Employer's rules, policies and/or procedures and any directions given by the Employer
 - (f) fails to perform to the standard reasonably expected by the Employer including persistent failure to achieve targets
 - (g) obtains a medical assessment result that is not satisfactory to the Employer and which objectively results in the Employee being unable to perform their duties set out in this Contract

- (h) abuses alcohol or drugs whilst on the Employer's premises, or just prior to commencing work on the Employer's premises, which adversely affects their ability to carry out their duties and/or
- (i) engages in physical abuse or displays unreasonable verbal aggression.

31.2 Following completion of the Employee's probationary period, at any time during the operation of this Contract, the Employer may terminate the Employee's employment by providing written notice in accordance with the table below or in accordance with the Industrial Instrument, whichever period of notice is greater:

Length of continuous service	Period of notice
Not more than 1 year	1 week
More than 1 year, not more than 3 years	2 weeks
More than 3 years, not more than 5 years	3 weeks
More than 5 years	4 weeks

- 31.3 If the Employee is over the age of 45 years and has at least two years of service, the Employee is entitled to one additional week's notice.
- 31.4 The Employee may terminate this Contract at any time by providing the Employer with written notice in accordance with the above table.
- 31.5 The Employer may, at its sole discretion, make payment to the Employee in lieu of all or part of this notice period. On termination, the Employee is also entitled to payment for any untaken annual leave entitlements.
- 31.6 On termination of employment for any reason, the Employee must immediately return to the Employer all property, documents and items relating to the business of the Employer which the Employee has in their possession or control. This includes, but is not limited to, any car, equipment, papers, keys, reports, computers, information, programs, records, documents, Intellectual Property and any other information, in whatever form, relating in any way to the Employer or its clients.
- 31.7 On termination of employment for any reason, the Employee must also irretrievably delete any Confidential Information stored on any computer, magnetic or optical disk or memory, and all matter derived from those sources in their possession, custody, care, or control outside the Employer's premises.
- 31.8 The Employee will repay to the Employer the balance of any loans or advances made by the Employer against the Employee's pay or leave entitlements, or any money otherwise owed to the Employer by the Employee. The Employer reserves the right to request to deduct any moneys owing to the Employer from the Employee's final pay in accordance with the relevant legislation.

32. NON-SOLICITATION AND POST-TERMINATION RESTRAINT

- 32.1 From the date the Employee's employment ends, the Employee agrees not to solicit or attempt to solicit business from any Client for the duration of the Restraint Period.
- 32.2 From the date the Employee's employment ends, the Employee agrees not to engage or prepare to engage in a business that competes with the business of the Employer or any Associated Entities for the duration of the Restraint Period within the Restraint Area.

- 32.3 From the date the Employee's employment ends, the Employee agrees not to solicit, attempt to solicit, entice, or encourage any employee of the Client or the Employer or any Associated Entities to leave their engagement with the Employer for the duration of the Restraint Period within the Restraint Area.
- 32.4 From the date the Employee's employment ends, the Employee agrees not to interfere or attempt to interfere with the relationship between the Employer or any Associated Entities and its Clients, employees, or suppliers for the duration of the Restraint Period.
- 32.5 In this provision:
- (a) **Client** means any person, firm, or company who at any time during the period of 12 months prior to the termination of the Employee's employment was a Client of the Employer or any Associated Entities, irrespective of the part or parts of the business in which the Employee was employed.
 - (b) **Restraint Period** means:
 - (i) 12 months or
 - (ii) 6 months or
 - (iii) 3 months
 - (c) **Restraint Area** means:
 - (i) 400 km radius from the location described in **Item 6** of the Schedule or
 - (ii) 200 km radius from the location described in **Item 6** of the Schedule or
 - (iii) 100 km radius from the location described in **Item 6** of the Schedule.
- 32.6 The restrictions in this clause apply to conduct which is either direct or indirect (e.g. done through an agent of any kind) and regardless of whether the conduct is engaged in for the Employee's own benefit or for the benefit of any other person or entity.
- 32.7 Each of the covenants in this clause will have effect as if it were the number of separate covenants resulting from combining each covenant with each subsection of the defining terms, referred to in the covenant. Each of the above obligations are separate and independent obligations. In the event that one or more of the obligations are found to be unenforceable, the remaining obligations will continue to apply.
- 32.8 The Employee acknowledges that each of the above restrictions are reasonable and necessary to protect the Employer's legitimate interest.
- 32.9 The Employee acknowledges that they will be liable for damages (including punitive or special damages) arising out of the breach of any of the terms of this clause.

33. REDUNDANCY

If the Employee's position is made redundant, the Employee shall not be entitled to any payment except as required under the Industrial Instrument and/or relevant legislation.

34. ASSIGNMENT

- 34.1 The Employee may not assign or transfer the rights and benefits under this Contract.
- 34.2 The Employer may assign its rights and obligations under this Contract to any person, business, company, or entity.

35. GOVERNING LAW

This Contract shall be governed by the jurisdiction of the courts in the State or Territory as described at **Item 9** of the Schedule.

36. VARIATION OF TERMS

The terms of this Contract may be varied from time to time by mutual agreement in writing between all parties.

37. SEVERABILITY

If any of the terms and conditions of this Contract are void, or become voidable, by reason of any statute or rule of law then that term or condition shall be severed from this Contract without affecting the enforceability of the remaining terms and conditions.

38. ENTIRE AGREEMENT

The contents of this Contract constitute the entire agreement between the Employee and the Employer. Any previous agreements, understandings, and negotiations on this subject matter cease to have effect.

39. FAIR WORK INFORMATION STATEMENT

By signing this Contract the Employee acknowledges that the Employer has provided them with a copy of the Fair Work Information Statement.

SIGNED BY AN AUTHORISED OFFICER OF THE EMPLOYER

.....
Authorised Officer

.....
Witness

.....
Title of Authorised Officer

.....
Name of Witness (printed)

.....
Dated

SIGNED BY


.....
Employee


.....
Witness

28/5/24
.....
Dated

Judith Schleger
.....
Name of Witness (printed)

SCHEDULE

Item 1	Employer name and details	Manuplex Labour Pty Ltd trading as Manuplex ABN: 12 634 089 786 Address: 88 Hollingsworth Street, Kawana QLD 4701						
Item 2	Your name and details	Shane Schleger 11A Denman Avenue Shoal Point Qld 4750						
Item 3	Position	Supervisor						
Item 4	Commencement date	27 th May 2024						
Item 5	Industrial Instrument	Black Coal Award						
Item 6	Location	Aquila Mine Site Or elsewhere in accordance with the business needs of Manuplex						
Item 7	Business normal hours of operation	Monday to Sunday 12.00am to 11.59pm						
	Normal working hours	Roster 7 on / 7 off						
Item 8	Remuneration	<table><tr><td>Hourly Rate</td><td>\$63.00</td></tr><tr><td>Incentive Payment (paid on every hour worked on site)</td><td>\$12.00</td></tr><tr><td>Base Hourly Rate</td><td>\$31.63</td></tr></table>	Hourly Rate	\$63.00	Incentive Payment (paid on every hour worked on site)	\$12.00	Base Hourly Rate	\$31.63
		Hourly Rate	\$63.00					
		Incentive Payment (paid on every hour worked on site)	\$12.00					
Base Hourly Rate	\$31.63							
Item 9	Governing Law	Queensland						